GENERAL AGREEMENT

This Agreement is made on the 7th day of October 2024, by and between Design Sketchers, a professional web design and development company, hereinafter referred to as the "Company", and the undersigned client, hereinafter referred to as the "Client".

This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, negotiations, and discussions, whether oral or written. Any amendments or modifications to this Agreement must be made in writing and signed by both parties.

In consideration of the mutual promises and agreements herein, this agreement is intended to make sure clear communication, accountability, and a shared understanding of the project's scope, deliverables, and expectations are fully established before the commencement of the project.

1- SERVICES PROVIDED BY THE COMPANY

1.1 Scope of Services:

Design Sketchers will provide a set of web design and development services, specifically according to Client’s needs, as detailed in the project proposal. These services cover all essential elements of web design and development and will help the Client’s business establish a strong and professional online presence.

These services include, but are not limited to web design, front-end and band end development, mobile responsiveness and optimization, content management system (CMS) integration, E-Commerce website setup, search engine optimization, UI/UX design, website maintenance and support and more.

1.2 Additional Services:

If the Client requests additional services beyond those outlined in the project proposal, the Company is more than happy to accommodate. **However, these additional services will be charged at either an updated rate, a revised standard hourly rate, or a mutually agreed-upon price, depending on the nature and scope of the request.**

These could include but are not limited to additional page designs, plugin development, marketing services, or custom features. All changes or additions must be documented and approved by both parties in writing to avoid misunderstandings.

2- CLIENT RESPONSIBILITIES

2.1 Provision of Information:

In order for us to create the best website possible, it’s important that the Client provides all necessary information, materials, and content in a timely manner. This may include text content, images, logos, branding guidelines, product details, pricing information, and anything else that is essential to the project.

We understand that gathering all these materials can be time-consuming, but the sooner we receive them, the sooner we can integrate them into the website design and development process. Delays in the provision of these materials may result in delays to the project timeline.

2.2 Timely Feedback and Approvals:

Web design is a collaborative process, and we value the Client's input at every stage. The Client agrees to provide timely feedback and approvals on design drafts, revisions, and other deliverables. Clear communication helps to keep the project on track and ensures that the final product meets the Client’s expectations.

We encourage open and honest feedback so that any issues can be addressed quickly and effectively. If at any point the Client requires changes, we request they be communicated as soon as possible to avoid affecting the schedule.

2.3 Content Responsibility:

While Design Sketchers is responsible for the design and development of the website, the Client is solely responsible for the content provided. This means that any text, images, or media uploaded by the Client must be original or properly licensed for use. We cannot be held liable for any copyright infringement, plagiarism, or other legal issues related to content supplied by the Client.

3. PROJECT TIMELINE AND DELIVERABLES

3.1 Timeline:

We know how important deadlines are, and we strive to meet all agreed-upon timelines. The project will proceed according to the schedule outlined in the project

proposal. However, we also recognize that web development is sometimes an iterative process, and unforeseen delays may occur, either on the Client's side or ours.

To mitigate any delays, we will maintain regular communication throughout the project and update the Client on progress or any issues that arise. **If the Client causes a delay such as by failing to provide feedback or necessary content in a timely manner the project timeline may not be extended accordingly.**

3.2 Revisions:

We understand that there is always some room for adding perfection and to make sure the final website meets the Client's expectations, we offer multiple rounds of revisions included in the project scope. These revisions allow for adjustments based on the Client's feedback. We are committed to making sure the Client is satisfied with the result, but any revisions beyond the agreed-upon number may incur additional charges, as quoted in the proposal.

3.3 Final Deliverables:

Once the project is completed and the final payment is received, Design Sketchers will deliver all website files, including HTML, CSS, JavaScript, databases (if applicable), and any other relevant files. We ensure the handoff is smooth, and we provide guidance to the Client on managing and maintaining their new website.

4. PAYMENT TERMS

4.1 Project Fee and Structure:

The total project cost is detailed in the project proposal. Payments will be structured as follows:

- Initial Deposit: **A non-refundable deposit of 25% of the total project cost is required upon signing this agreement to secure the project start date**. This ensures our team is committed to the Client's project and sets the wheels in motion.

- Milestone Payments: Payments will be tied to project milestones, which are outlined in the proposal. For example, a portion of the total fee may be due upon completion of the design phase, another upon development, and the final payment before launch. This staggered payment structure ensures fairness and gives both parties accountability as the project progresses.

- Final Payment: The remaining balance is due upon completion of the project and before the website is handed over to the Client. Full payment ensures the Client owns all rights to the final deliverables.

4.2 Late Payments:

We value punctuality, and we ask the same of our Clients. Late payments can cause disruptions to the project timeline. If payment is not received by the due date, a late fee of 10% will be added if the payment is delayed.

To avoid delays, please ensure payments are made on time. If the Client fails to meet the agreed payment schedule, the Company reserves the right to suspend work until payments are brought up to date.

4.3 Refund Policy:

For refund requests, all requests must be made through our support team. Each request will be evaluated on a case-by case basis, and we reserve the right to approve or deny any refund request based on the specifics of your situation.

If you request a refund before we've sent you the first design concepts, you're eligible for a full refund. However, once we've delivered the initial designs, the refund structure changes depending on how much time has passed:

- **Within 48 hours**: You can request a refund, and we'll return 66% of your payment, minus a 10% processing fee.

- **Within 48 to 96 hours**: You can still request a refund, but you'll be eligible for only 33% back, and the 10% processing fee will still apply.

- **After 96 hours**: At this point, we're unable to offer a refund, as we'll have put significant work into the designs.

If the client goes unresponsive for **5 working days** during the design process, we won't be able to issue a refund in such a scenario. If there's no communication for 7 working days, the project may be paused, and there may be a fee to restart it, depending on the scope of the work

5. INTELLECTUAL PROPERTY AND COPYRIGHT

5.1 Ownership of Deliverables:

Upon full payment, the Client will own all final deliverables related to the website, including design files, code, and any other assets created specifically for the project.

This gives the Client full control and ownership of the completed website.

However, it's important to note that third-party software, plugins, or external resources used in the project (e.g., CMS platforms like WordPress or Shopify) remain the property of their respective owners and are licensed, not owned, by the Client.

5.2 Retention of Rights by the Company:

Design Sketchers retains the right to showcase the Client's website as part of its portfolio. This helps us demonstrate our expertise and the high standard of our work to potential clients. If the Client wishes to withhold permission for their website to be included in our portfolio, they may do so in writing, and we will honor that request.

5.3 Third-Party Licenses:

Any third-party licenses required for plugins, themes, or software will be outlined in the proposal, and the cost of these licenses is the responsibility of the Client. The Client will own the rights to use these tools as specified by the license agreements but will not own the tools themselves.

6. ONGOING MAINTENANCE AND SUPPORT

6.1 Post-Launch Support:

After the website launches, we understand that there might be minor issues or bugs that arise. For this reason, we offer 7 days of complimentary support to resolve any issues related to the design and development of the website. We will be available to fix any bugs or performance problems that may occur during this period.

7. CANCELLATION BY CLIENT

The Client must provide written notice of the cancellation to the Company. Verbal cancellations will not be considered valid or enforceable. **If the Client cancels the project, all work completed remains the property of the Company until full payment is made. However, once payment is received, ownership of the deliverables can be transferred under clients name.**

In the event of cancellation, the Client will be responsible for paying the Company for all work completed up to the date of cancellation. This includes any hours worked, services rendered, and any non-refundable expenses incurred by the Company in relation to the project. The payment due will be based on the percentage of work completed, as reasonably determined by the Company.

Also note that the deposit client makes covers the Company's time spent in preparation and reserving the project timeline. Any initial deposits made by the Client are non-refundable, even if the project is canceled before significant work has commenced.

8. DISPUTE RESOLUTION

The parties agree to make every effort to resolve any disputes arising from or related to this Agreement through amicable and constructive negotiations. If a dispute arises, both the Company and the Client will engage in good faith discussions in an attempt to resolve the matter within **30 days** from the initial notification of the dispute.

If the parties are unable to reach a resolution within this timeframe, the dispute will be submitted to binding arbitration, as per the rules of the law of the court, or any other mutually agreed upon arbitration body.

9. SIGNATURES

IN WITNESS WHEREOF, the client hereto have executed this Agreement as of the date first written above.

Name: Nigel Rutledge
Date: Jan 28, 2025

Authorized Signature: